

## Smt. Suman Devi v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 1 July 2015 · Criminal Misc. Writ Petition No. 15228 of 2015 · **FIR under s.135 not quashed; CrPC 41/41-A arrest; compounding liberty**

### HEADNOTE

The Allahabad High Court refused to quash an FIR under Section 135 of the Electricity Act, 2003 that disclosed a cognizable offence. Because the offence cannot attract a sentence of more than seven years, any arrest must follow Section 41(1)(b) read with Section 41-A Cr.P.C. Compounding, if available, is to be sought under the Electricity Supply Code, 2005 and Section 152 of the Act.

### FACTUAL SUMMARY

Smt. Suman Devi filed a criminal miscellaneous writ in the Allahabad High Court seeking quashing of FIR dated 10 June 2015, Case Crime No. 539 of 2015, registered under Section 135 of the Electricity Act, 2003 at Police Station Shikohabad, District Firozabad. She had not been arrested. Counsel submitted that the alleged offence could not attract a sentence of more than seven years, so arrest should not be mechanical, and that the offence was compoundable. The State appeared through the AGA; counsel also appeared for the respondents.

### HOLDING-UNITS

#### HOLDING-UNIT · EA2003::135

s.135 FIR — no quash; arrest safeguards

#### HOLDING

A criminal writ to quash an FIR under Section 135 of the Electricity Act, 2003 is refused where the FIR discloses a cognizable offence. Because the offence cannot attract a sentence of more than seven years, any arrest must comply with Section 41(1)(b) read with Section 41-A Cr.P.C. ¶ 1

#### HOLDING-UNIT · EA2003::152

compounding of s.135 offence

#### HOLDING

If the alleged Section 135 offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and Section 152 of the Electricity Act, 2003; the Court does not itself compound the offence on the writ. ¶ 1

### PRINCIPLE TAGS

#### s135-arrest-safeguards-and-compounding-remedy

FIR left standing; arrest if any to follow CrPC 41(1)(b)/41-A because sentence cannot exceed seven years; compounding left to Supply Code 2005 and s.152. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — GUILT ON THE SECTION 135 ALLEGATION

FIR left to investigation; no merits finding. ¶ 1

#### NOT DECIDED — COMPOUNDING UNDER SECTION 152 AND THE SUPPLY CODE, 2005

Liberty reserved; no compounding application decided. ¶ 1

